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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF INTERIOR

NOTIFICATION

Islamabad, the 12th October, 2011

S. R. O. 1157(I)/2011.— In exercise of the powers conferred by section 12 of the Consumers Protection Act, 1995 (III of 1995), the Federal Government is pleased to make the following rules, namely:—

1. **Short title and commencement:**— (1) These rules may be called the Islamabad Capital Territory (Consumers Protection) Rules, 2011.

(2) They shall come into force at once.

2. **Definition:**—(1) In these rules, unless the context otherwise requires,

(a) “Act” means the Islamabad Capital Territory Consumers Protection Act, 1995 (III of 1995):

(b) “person” means any natural or artificial person;

(4633)

- (c) **“chairman”** means a chairman of the Council;
- (d) **“convener”** means the convener of an ACA to be nominated by the IC A under rule 7;
- (e) **“Islamabad Consumers Association” or “ICA”** means the Islamabad Consumers Association constituted for the Islamabad Capital Territory under rule 4;
- (f) **“Area Consumers Association” or “ACA”** means an Area Consumers Association constituted for any specified area or sector of Islamabad under rule 7;
- (g) **“respondent”** means a person against whom a complaint has been filed;
- (h) **“rule”** means rule of these rules;
- (i) **“damage”** means any damage caused by any product or service including damage to the product itself or economic loss arising from a deficiency in or loss of use of the product or the service;
- (j) **“manufacturer”** includes a person who—
 - (i) is in the business of manufacturing a product for the purpose of trade or commerce;
 - (ii) labels a product as his own or who otherwise presents himself as manufacturer of the product;
 - (iii) as a seller exercises control over the design, construction or quality of a product;
 - (iv) assembles a product by incorporating into his product any component or part manufactured by another manufacturer;
 - (v) is a seller of a product of a foreign manufacturer, or is affiliated with the foreign manufacturer by way of partial or complete ownership or control; or
 - (vi) modifies or prepares the product for sale or distribution and assumes or administers warranty obligations of the product;

- k. **“manufacturing a product”** means and includes producing, fabricating, constructing, designing, remanufacturing, reconditioning or refurbishing a product.
- (I) **“product”** has the same meaning as assigned to the word “goods” in the Sale of Goods Act, 1930 (III of 1930).
- (m) Islamabad Consumer Association or **“ICA”** means the Islamabad Consumer Association set up under rule 4;
- (n) Area Consumer Association or **“ACA”** means an Area Consumer Association set up under rule 7;
- (o) **“Provincial Government”** means the Chief Commissioner, Islamabad Capital Territory, specified in the Islamabad Capital Territory (Administration) Order, 1980 (PO 18 of 1980) and invested, *vide* Notification No. 17(2)/80-Pub, dated the 31st December, 1980, with the powers and duties conferred or imposed on the Provincial Government under any law for the time being in force in the Islamabad Capital Territory;

(2) Words and expressions used in these rules and not defined shall have the meanings respectively assigned to them in the Act.

3. **Procedure of the Council:**—(1) The chairman of the council shall be sanctioning authority of all activities of the council.

(2) The council shall elect one of its members to be its secretary who shall be responsible for running its affairs.

(3) The Secretary shall call meeting of the council after seeking approval from the chairman.

(4) The secretary shall maintain and put up all complaints and other record received during the period, for discussion and disposal, on a format as the Provincial Government may specify.

(5) The secretary shall convey the agenda and working paper to all members of the council, at least a week prior to the meeting of the council.

(6) The secretary shall circulate minutes of the meeting to all members after seeking approval from the chairman.

(7) The council may require the ICA to brief the council about the details of any complaint, before referring it to the Authority.

(8) The decision in meeting of the council shall be taken by simple majority of the members present and in case of tie, the chairman shall have the powers to decide the issue either way in accordance with the law.

(9) The secretary shall be assisted by an authorized officer and such staff as may be provided by the Provincial Government. He shall maintain record of all complaints received by the council and working thereto, coordinate with the council, ICA and the ACA(s) and represent the council before the Authority.

(10) There shall be a monthly meeting to be held on first working day of every forthcoming month.

(11) The council shall hold its meeting at such place and with such facilities as the Government may specify.

Explanation: Only the complaints involving any issue of general public interest shall be referred to the council for action into the matter.

4. **Islamabad Consumer Association (ICA):**—(1) The council shall constitute an ICA, comprising of:—

- (a) a prominent social worker to be chairman of the ICA;
- (b) a lady social worker of repute;
- (c) three representatives from the ACA's;
- (d) three representatives from the shop keepers, vendors and manufacturers;
- (e) a representative from the office of Chief Commissioner, ICI;
- (f) a representative from the health department, CDA;
- (g) a representative from the agriculture industries and labour directorate, ICT;
- (h) a representative from the health department, ICT;
- (i) an expert in accounts and fiscal policies;

(j) a representative from food department, ICT; and

(k) District Attorney, ICT,

(2) The ICA may co-opt services of any other expert or any officer of the ICT for its assistance.

(3) The ICA shall elect a secretary who shall conduct its business in accordance with the procedure prescribed in the Act and these rules.

5. **Powers and functions of the ICA:—**(1) In addition to the powers and functions entrusted to it by the council, the following shall be the powers and functions of the ICA, namely:—

(a) to assist the council in devising the ways and means to determine, promote and protect the rights of the consumers;

(b) to scrutinize the complaints made to it by any complainant or any ACA before referring them to the council for onward submission to the Authority;

(c) to take measures under the guidance of the council for ensuring smooth and regular supply of consumer items at the prices fixed by the Government;

(d) to submit to the council quarterly or as directed by the council report of its activities, prepared by the secretary;

(e) to adopt all ways and means, as approved by the council, to curb unfair trade practices and to carry out the purposes of the Act and these rules;

(2) The ICA may entrust its powers and functions, except those entrusted to it by the council, to any or all ACA (s) constituted under rule 7;

(3) All members, except *ex-officio* members of the ICA shall hold office for a period of one year unless removed by the council. This period shall be extendable for such terms as deemed appropriate by the council, provided that the extension shall be made on one term basis and nomination or removal of all *ex-officio* members shall be made by the Provincial Government.

Explanation: The complaints not falling within the ambit of explanation to the rule 3 and rule 7 shall be dealt by the ICA.

6. **Procedure to be followed by the ICA:—**(1) A complaint, made to the council or ICA or ACA directly or by a registered post, addressed to the chairman of the council or the secretary, ICA or convener of an ACA shall contain:—

- (a) The name, description, address and contact number of the complainant;
- (b) The name, description, address and contact number of the respondent(s) so far as they can be ascertained;
- (c) The cause of action and the place where it arose;
- (d) The description of the documentary and oral evidence in support of the allegations contained in the complaint;
- (e) The relief which the complainant claims; and
- (f) The findings and recommendations of the ACA, if the complaint is referred by the ACA.

(2) Every complaint under sub-rule (1) shall be filed in such number of copies as may be determined in writing by the council, ICA or the ACA, as the case may be.

(3) The ICA shall complete its working upon the complaint within fifteen days, unless delay is caused due to some unavoidable circumstances, of its receipt from the ACA or the complainant, as the case may be.

(4) The ICA may require from the complainant and the respondent such oral and documentary evidence, if deemed necessary, and shall dispose of the complaint after personal hearing of both the parties, if there appears no cause of action or reasonable or legal grounds for action or a compromise is arrived at by the parties.

(5) If the ICA is of the opinion that the matter can not be resolved and calls for action by the Authority, due to any reason, it shall refer the complaint alongwith its recommendations to the council for further action.

(6) In the event of delay in deciding a complaint within the period specified in sub-rule (3), the ICA shall record, in writing, the reasons for the delay in such disposal.

(7) If the complainant or the respondent fails to appear before the ICA after having been duly summoned, the ICA shall forthwith decide the matter *ex-parte*.

(8) The ICA shall sit at such place and be provided with such facilities as the Provincial Government may determine. There shall be monthly meeting in the manner as the council may specify.

(9) Any member may by writing under his hand addressed to the chairman, resign from his office.

(10) No act or proceeding of the ICA shall be invalid merely on ground of any existing vacancy or defect in the composition of the ICA or irregularity in proceedings unless prejudice has been caused to the complainant or the respondent.

7. **ACA and its Procedure:—**(1) The ICA, in consultation with the council, shall cause constitution of as many ACA(s), sector-wise or otherwise, comprising of such members and for such areas as it may deem necessary.

Explanation: Any convenient division like that of Magisterial/Police/Union Council/CDA Sector etc. may be adopted by the council for constitution of the ACA(s).

(2) The ACA(s) shall work under supervision of the convener nominated by the ICA and a secretary elected by the respective ACA and shall sit at such places as the Provincial Government may authorize.

(3) The ACA(s) shall ensure implementation of the Act and the rules made there under and may refer any complaint to the ICA on finding any contravention of the Act or the rules.

(4) The ACA may resort to reconciliation or *masalihah* between the complainant and the respondent and decide the matter at the local level within fifteen days of the written complaint made to the ACA or on any matter taken on *suo moto* action.

(5) In case reconciliation is not reached at, the ACA shall refer the case to the ICA immediately.

(6) The convener and the members of the ACA(s) shall hold office for a period of one year: [Provided that the convener or any member can be removed by the ICA before expiry of the period.] [Provided further that the period may be extended for such further terms as deemed appropriate by the ICA.] [Provided also that an extension granted, at a time, shall not exceed to more than one term.]

(7) The quorum in case of ACA or the ICA to carry out the proceedings shall be at least one half of the members of the ACA or the ICA respectively.

(8) The business of the ICA and ACA (s) shall be conducted in accordance with the provisions of these rules.

(9) The ACA(s) shall hold meetings at such place(s) with such facilities as the District Administration, may specify.

Explanation: The complaints relating to the retail purchasers of the goods etc. shall be dealt by the respective ACA.

8. **Prices to be exhibited at the business place:**—Unless a price catalogue is available for issuance to every customer, the manufacturer or trader shall display prominently, in his shop or display-centre, a notice specifying the retail or wholesale prices alongwith brand and manufacturer's name, as the case may be, of every type of goods available for sale in his shop or display-centre.

9. **Receipt to be issued to the purchaser:**—Every manufacturer or trader who sells any goods shall provide the purchaser a receipt or any other reasonable proof showing that the item has been sold to that purchaser.

10. **Return and refund policy:**—Return and refund policy of a seller shall be disclosed and delivered to the buyer clearly before the transaction is completed and the same shall be displayed prominently and properly at the most conspicuous point of the sale or display centre. Also the return and refund policy shall be printed on the receipt issued on sale of any item:

Provided that the seller shall take back the sold item from the purchaser if the same has not been changed, altered or damaged by the purchaser, unless it is due to any act of the seller or fault of the item or a natural consequence of the act or the fault, on production of proof of purchase, within warranty period or reasonable time after the sale where warranty is not applicable:

Provided further that the reasonable time shall be determined keeping in view the terms and conditions of the sale, nature of the item and circumstances of each and every case.

11. **Prohibition on bait advertisement:**—(1) No person shall trade, advertise or supply, at a specified price, products or services which that person does not—

(a) intends to offer for supply; or

- (b) have reasonable grounds or capacity for believing that they can be supplied at that price for a period that is, and in quantities that are, reasonable, having regard to the nature of the products or services and the market in which the person carries on business and the nature of the advertisement made by him.

(2) Any person who has advertised products or services for supply, at specified price, shall offer such products or services for supply, at that price, for a period that is, and in quantities that are, reasonable, having regard to the nature of the products, services and the market in which the person carries on business and the nature of the advertisement made by him.

12. **Dismissal, return and filing of complaints:**—(1) Where a complaint is found to be frivolous or vexatious, the ACA or the ICA, or the Council, as the case may be, before which the proceedings are lying pending, shall not process the complaint further.

(2) Any complaint not falling within the ambit of ACA, ICA or the Council, as the case may be, shall be returned forthwith, so as to file it before the competent forum.

(3) Every action taken by the ACA, ICA or the Council, *suo-moto* or otherwise, shall be filed before the Authority for decision.

Explanation: Decision by the ACA, ICA or the Council, against any person, whether complainant or respondent, shall not bar the aggrieved person to file complaint before the Authority.

[No. 7/1/2003-ICT-II.]

NISAR MUHAMMAD,
Section Officer.